



Academic Appeals Policy & Procedure

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External reference points	UK Quality Code, June 2024 Principle 12: Operating concerns, complaints and appeals processes. Providers operate processes for complaints and appeal that are robust, fair, transparent and accessible, and clearly articulated to staff and students. Policies and processes for concerns, complaints and appeals are regularly reviewed, and the outcomes are used to support the enhancement of provision and the student experience. The external body where students may lodge a complaint or appeal including academic appeal after exhausting all other possible routes: Office of the Independent Adjudicator for Higher Education (OIAHE)

Version Control			
Previous Version	New Version	Date	Update/Notes
V2.4 (21-06-24)	V3	15-04-25	Added version control table. Updated the external reference point from UK Quality Code March 2018 to UK Quality Code June 2024. Amended the Appeals Process for greater clarity. There is now an Academic Appeals Panel (AAP) that appoints an Investigating Officer (IO). A review of this decision may be passed to the Academic Appeal Review Panel (AARP), who may consult one other member of the Academic Board before reaching a final decision.
V3 (15-04-26)	V4	15-04-26	Annual review. Additional information on TEC's status before OfS registration and student access to OIA.

Contents

1.	Introduction	3
2.	Purpose and Scope	3
2.1.	Who can Appeal?	4
3.	Partner Organisations.....	4
4.	Principles of this Policy	5
5.	What are Academic Appeals.....	5
6.	Acceptable Reasons for Academic Appeals	6
6.1.	Procedural Irregularities.....	6
6.2.	Adverse Conditions	6
6.3.	Prejudice or Unfair Bias.....	6
6.4.	Appeals and Complaints.....	6
7.	How to Submit an Appeal	7
7.1.	Informal Resolution	7
7.2.	Formal Academic Appeal (Written) to the Academic Appeal Panel (AAP)	7
7.3.	Appeal Outcomes	8
7.4.	Academic Appeal Review Panel (AARP)	8
8.	Completion of Procedures Letter	9
9.	Appeals to External Bodies/Organisations	9
9.1.	Pearson Awarding Organisation.....	9
9.2.	Partner Organisations.....	9
9.3.	Office for the Independent Adjudicator for Higher Education (OIAHE)	9
10.	Record Keeping	10
11.	Confidentiality	10
12.	Appendix 1 Appeals Form	11
13.	Appendix 2: Appeals Process	12

1. Introduction

Trent Education Centre (TEC) understands that assessment decisions can have a significant impact on a student's academic progress and future opportunities. It is important for TEC to have a fair and transparent process in place for handling appeals, so that students can have confidence in the assessment process. This policy assures students that they can appeal without facing any negative consequences and aims to ensure that assessments are conducted in alignment with the UK Quality Code for Higher Education. The appeals process is meant to address any flaws in the assessment process and promote fairness for all involved, while also striving for timely resolution. All parties involved are expected to remain impartial and disclose any conflicts of interest.

2. Purpose and Scope

This document is designed to assist students and academic staff in effectively handling appeals. It gives students the opportunity to appeal a decision if they believe an error has been made, under the specific grounds outlined below.

In the future, TEC may provide higher education courses in partnership with another higher education institution, such as a College or University that is registered with the Office for Students. In such cases, it is most likely that students will be required to refer to the partner's policy on Academic Appeals and not this policy. Students will be informed which policy they need to follow when they apply and enrol on a course.

This policy is designed for TEC's own higher education courses. Students are entitled to submit an academic appeal under the grounds and procedures set out in this policy, followed by one review stage. This policy is currently relevant to every student studying higher education courses at any of TEC's Study Centres including Pearson and ATHE level 5 courses TEC currently offers.

These students may refer to this policy if they wish to make an academic appeal. Students may make an appeal against one or more assessment results. To file an appeal, the assessment being appealed must be for a module or unit that the student has studied at Trent Education Centre.

Students will be able to access the Office of the Independent Adjudicator for Higher Education (OIAHE) once TEC delivers higher education courses that fall within the OIA's remit. For TEC, this will occur once TEC is registered with the Office for Students and its higher education courses become designated for student support.

2.1. Who can Appeal?

The process outlined in this document is available to all current or former students at TEC, with details on when appeals must be submitted by students.

Only the student themselves can submit an academic appeal to TEC; appeals cannot be made on behalf of the student by another individual. This policy ensures that students take ownership of their academic concerns and are directly involved in the appeals process.

Students have the right to seek support and guidance from other individuals within TEC during any part of the appeal process. This individual can be either a current TEC student or a staff member. This option is in place to provide students with additional assistance and ensure they have someone to turn to for support throughout the procedure.

Students must adhere to the timeline of submitting their formal academic appeals within 21 days after the assessment results are released. It is imperative to exhaust all efforts in seeking an early resolution before proceeding with the formal appeal process.

3. Partner Organisations

TEC assesses students under the regulations set by different awarding organisations. Currently TEC offers higher education courses in ATHE Level 4 and Level 5, and Pearson BTEC HND Level 4 and Level 5 programmes. Students are required to comply with the ATHE and Pearson BTEC policies on academic appeals. In cases where TEC may be offering courses in partnership with another awarding organisation such as a partner college or university, students and relevant academic staff should refer to, and comply with, the partner organisation's policy on academic appeals .

4. Principles of this Policy

In accordance with the guidelines of the Office of the Independent Adjudicator for Higher Education (OIAHE) in relation to academic appeals, this policy adheres to the following principles:

- All assessment decisions are fair and transparent.
- Decisions and procedures are well understood, and students have the opportunity to appeal against them and to seek an independent review.
- All appeals are dealt with in a timely manner through early resolution where possible.
- Students are informed about their right to appeal assessment decisions and are kept informed throughout their studies.
- No student is treated unfairly or faces negative consequences for making an appeal in good faith.
- Reasonable adjustments when making assessment decisions must be taken into consideration.
- Reasonable adjustments will also be considered during the appeals process.
- The validity, reliability, and consistency of assessment decisions throughout TEC must be maintained.
- Students are supported throughout the assessment process, and their views are taken on board.
- Students understand the reasons for the assessment decisions that have been taken and recognise that these decisions are accurate and fair and inform them of what they need to do to improve.
- TEC will ensure that the academic appeals process is accessible to all students. Reasonable adjustments will be provided for students with disabilities or special educational needs, including alternative formats, extended deadlines where appropriate, and support during meetings or hearings. See the **Special Considerations and Reasonable Adjustments Policy** for more information.
- Any staff member involved in the appeals process must declare any actual or potential conflict of interest. Individuals with a conflict of interest (for example if the appellant were their relative), may not participate in the investigation, consideration or review of an appeal.

5. What are Academic Appeals

In accordance with the Office of the Independent Adjudicator for Higher Education (OIAHE), an academic appeal is defined as: 'a challenge to or request for reconsideration of a decision by an academic body that makes decisions on student progress, assessment and awards. This may include a request to change marks or progress decisions, or final award classifications.'

<https://www.oiahe.org.uk/resources-and-publications/good-practice-framework/handling-complaints-and-academic-appeals/annexes/#acap>.

6. Acceptable Reasons for Academic Appeals

Academic judgement cannot be appealed. Students cannot challenge assessment decisions if they disagree with the academic judgement of assessors, internal verifiers, moderators or examiners. Appeals may only be made on the specific grounds outlined below.

Students can, however, request a "results surgery" where the assessor will provide clarification on the assessment decisions to manage their expectations and resolve any issues.

In order to address any concerns, students must first submit an informal Academic Appeal to their Tutor/Assessor, Programme Leader, or Head of Higher Education either verbally or through email. If they wish to escalate the appeal further, they must follow the outlined procedures below

Students are only permitted to appeal against assessment decisions on certain grounds, which include:

6.1. Procedural Irregularities

The student experienced a disadvantage due to a procedural mistake during the assessment process. For example, this might include being given only 2 hours to complete an exam designed to last 3 hours. Alternatively, it could involve an administrative issue, such as an error in recording the student's results, which impacted their final grade. This process is specifically designed for students who wish to dispute a decision made by an assessment, exam, or progression board.

6.2. Adverse Conditions

If during the assessment, the student faced conditions that had a detrimental impact on their performance and there are good reasons why they were unable to make their Tutor or Assessor aware of this at the time.

The student can provide evidence that they had good reasons why they were unable to perform well in their assessment but were not able to inform the appropriate staff at the right time.

If a student encounters difficulties that affect their performance but cannot report these issues to the relevant authorities prior to a decision, they must provide documented evidence and explain why they were unable to notify TEC prior to the assessment decision.

6.3. Prejudice or Unfair Bias

A student will need to provide evidence if they believe that their marks in an assessment were worse than they should have been due to bias or prejudice against them by one or more assessors, internal or external verifiers, moderators or examiners.

6.4. Appeals and Complaints

Students may make a complaint using the TEC Student Complaints Policy, available on the TEC website about anything in relation to their assessments, including the teaching, support and guidance they received for their assessments. However, students may not retrospectively appeal against an assessment decision on the basis of their complaint. In some cases, an academic appeal may be more suitably handled through the TEC complaints process or simultaneously with the complaints process depending on the nature of the concern.

An appeal and a complaint are not necessarily related. Complaints typically arise from situations where the student feels harmed by actions or inactions in general, whereas appeals involve academic decisions. However, these issues can sometimes overlap. For instance, a student might feel that a grade was influenced by personal issues between the assessor and the student and the student might appeal the grade while also filing a complaint about the assessor's conduct. In cases where a student is unsure whether their concern constitutes an appeal or a complaint, they should consult the Programme Leader or another appropriate staff member before proceeding.

Some cases may include multiple concerns, and each issue will be reviewed separately. Students will be guided on the order of dealing with each concern and the next steps. In instances where two procedures are conducted simultaneously, TEC will ensure the student understands how one process might affect the other, such as when one may be paused until the other concludes.

If the appeal includes overlapping issues, TEC may propose combining them into a single process, subject to the student's agreement. Alternatively, some matters may be addressed through the TEC Student Complaints Policy if that is deemed more relevant by the AAP. Information will be passed to the student by the Academic Appeal Panel described below.

7. How to Submit an Appeal

7.1. Informal Resolution

Students are encouraged to seek an informal resolution if they wish to make an Academic Appeal, either by communicating verbally with their Personal Tutor or other member of staff they prefer, or through email to an appropriate member of staff such as their Personal Tutor or Programme Leader. If an informal early resolution proves unsatisfactory, students may proceed with a formal appeal.

7.2. Formal Academic Appeal (Written) to the Academic Appeal Panel (AAP)

If a student remains unsatisfied after trying to handle the appeal informally, a student may lodge a formal appeal to the Academic Appeal Panel (AAP) using the Academic Appeal Form (available in Appendix 1). The Academic Appeal Panel (AAP) includes the Head of Higher Education (Chair), Head of Compliance and at least one other Academic staff member such as a Programme Leader or Lecturer. The assessor who marked the student's work whose assessment is being appealed against should not join the AAP. If the Head of Higher Education has a conflict of interest, the Head of Compliance will chair the AAP. The Academic Appeal Form must include a detailed explanation of the appeal, relevant supporting documents (e.g., email correspondence or medical evidence), and a clear statement of the desired outcome. Students are advised not to include personal information about third parties without prior permission.

The Chair of the AAP will appoint an Investigating Officer (IO) from the academic team who has not been previously involved in the case. The IO will investigate and report findings to the AAP, which will then meet and make a final decision. The student should provide the IO with any relevant evidence they have upon request. Should the AAP find that the appeal is not valid, they will dismiss the appeal.

Formal academic appeals must be made within 21 days of the assessment results being published, and only after an early resolution has first been sought.

All aspects of the assessment will be considered, and a decision will normally be made within 20 working days of receiving the appeal. The student will be informed of the outcome by the Chair of the AAP or delegated person through the completion of the 'Appeals Form' (Appendix 1). Students can anticipate receiving an email within 7 days acknowledging that they have made an appeal. In the case of not receiving an acknowledgment within this timeframe, the student should reach out to the Investigating Officer, Head of Higher Education or Programme Leader to confirm the receipt of their appeal.

7.3. Appeal Outcomes

After making an appeal the student can expect one of two possible outcomes:

- The student receives a written explanation from the AAP stating that their appeal is successful and the assessment decision is amended by the AAP accordingly.
- The student receives a written explanation from the AAP that the appeal is unsuccessful, and no changes are made to the assessment decision

In all cases, the Chair of the Assessment Board is notified of the appeal and the decision by the AAP.

If the student's mark is amended but the student remains unsatisfied, they may appeal to the next stage which is the review stage explained in the next section below.

7.4. Academic Appeal Review Panel (AARP)

A student may request that the Academic Appeal Review Panel (AARP) review their appeal if they are dissatisfied with the decision of the AAP. To request a review, the student must write to Academic Appeal Review Panel (AARP), which includes the Executive Principal and Head of Quality, within 7 days of receiving the decision of the Academic Appeal Panel. If the Executive Principal or Head of Quality have already dealt with the appeal, the Managing Director will sit on the AARP.

TEC's **Executive Principal (EP)** or **Head of Quality (HQ)** will then review the appeal and make a final decision. No-one involved in the earlier stages of the appeal process will be able to take part in the review of the appeal outcome, including the Head of Higher Education or Programme Leader. The EP or HQ may seek the opinion of one other member of the Academic Board such as the Head of Operations before reaching a decision. The decision of the EP or HQ will be communicated to the Assessment Board and to the student in writing and will be considered as the final decision. Typically, the student can expect to receive this written communication within 20 working days.

If a student wishes to appeal further, they may appeal to the Office of Independent Adjudicator for Higher Education (OIAHE) or to the Awarding Organisations for their programme such as ATHE or Pearson.

8. Completion of Procedures Letter

A Completion of Procedures (CoP) letter is issued after the Academic Appeal Review Panel (AARP) has made its final decision. This confirms that TEC's internal processes have been completed. Students will be able to use a CoP letter to escalate their case to the Office of the Independent Adjudicator for Higher Education (OIAHE) once TEC delivers higher education courses that fall within the OIA's remit. This will only occur when TEC has attained registration with the Office for Students.

9. Appeals to External Bodies/Organisations

Students not satisfied with the outcome of an appeal, who have exhausted all options available at Trent Education Centre (TEC) up to and including an Academic Appeal Review may appeal further to an external body. For students in TEC-delivered programmes in partnership with universities, they must first attempt informal resolution at TEC before lodging a formal Academic Appeal with the university partner. TEC will provide students who have completed the review processes at TEC with a completion of procedures letter that they will need if they wish to appeal to external bodies.

9.1. Pearson Awarding Organisation

Students enrolled in TEC's BTEC HND courses can challenge academic decisions directly through the Pearson Awarding Organisation. This can be done by submitting an appeal using the link provided below. This process is specifically applicable to Pearson BTEC Higher National Diplomas.

https://qualifications.pearson.com/content/dam/pdf/Support/policies-for-centres-learners-and-employers/Enquiries_and_Appeals_on_Pearson_Vocational_Qualifications.pdf

9.2. Partner Organisations

Students have the option to submit an appeal directly to any of TEC's partners associated with their specific programme of study if relevant. They can access the necessary contact information on the TEC website or ask TEC's academic or administrative personnel for the contact details of the relevant partner.

9.3. Office for the Independent Adjudicator for Higher Education (OIAHE)

Students will be able to access the Office of the Independent Adjudicator for Higher Education (OIAHE) once TEC delivers higher education courses that fall within the OIA's remit. For TEC, this will occur once TEC is registered with the Office for Students and its higher education courses become designated for student support.

<http://www.oiahe.org.uk/making-a-complaint-to-the-oia/how-to-make-a-complaint.aspx>

At such time that TEC has attained registration with the Office for Students and its higher education courses fall within the remit of the Office of the Independent Adjudicator for Higher Education (OIAHE), TEC will provide students with a Completion of Procedures (CoP) letter. This letter will enable eligible students to escalate their case to the OIAHE. Students would normally be required to submit their case to the OIAHE within 12 months of receiving the CoP letter.

10. Record Keeping

TEC will document academic appeals for analysis and reporting. This will facilitate monitoring of the causes of appeals, their resolution and enable training opportunities and improvements where necessary. Each year, the Academic Board will receive a report containing anonymised information regarding the number and characteristics of academic appeals reviewed, as well as their respective resolutions. The TEC Data Protection Policy will be followed by TEC for the retention of records on academic appeals and when TEC will dispose of them. Records of academic appeals will normally be retained for six years in accordance with TEC's Data Protection Policy and sector norms.

11. Confidentiality

TEC will ensure compliance with TEC's Data Privacy Notice and Consent Policy when collecting and retaining data on academic appeals. All data accordingly will be confidential and only disclosed when needed to implement a decision or if required by regulators for monitoring purposes.

When a student submits an appeal, they acknowledge that the staff member overseeing the investigation will have access to their appeal and may need to disclose its contents to other staff members to address the issues raised. If a student has concerns about the confidentiality of certain aspects of their appeal, they can speak with the Chair of the Academic Appeal Panel or the Academic Appeal Review Panel to discuss their concerns and how confidentiality can be protected.

Students should refrain from sharing unnecessary personal details, such as medical conditions, in their appeal unless it relates to the situation at hand. Additionally, they should not reveal anyone else's personal information in their complaint unless they have obtained consent from that individual.

12. Appendix 1 Appeals Form

Academic Appeals Form			
This form must include a logical explanation for why an appeal is being made. If a grade is questioned without a clear reason, the appeal may not be successful. However, all appeals will be considered after the form is filled out. Students may not appeal for invalid reasons such as the following: • They needed a higher grade to get into a university of their choice • They did not have enough time to get a better grade • They worked very hard and think that they deserve a better grade			
Student' Name			
Date of Appeal			
Programme of Study			
Unit or Module Title			
Name of Assessor			
Name of Internal Verifier/Moderator			
Explain why you are making the appeal			
Procedural Irregularity	Yes ☐	No ☐	
Adverse Circumstances	Yes ☐	No ☐	
Prejudice or Bias	Yes ☐	No ☐	
Please Explain			
Signed by the Student		Date	
Decision of the Academic Appeal Panel (AAP)			
Staff Role/Job Title			
Staff Signature		Date	

13. Appendix 2: Appeals Process

